

Calendar Line 1

Case Name: *James Choi vs WESTFIELD, LLC, a Delaware Limited Liability Company et al*
Case No.: 25CV456698

On January 16, 2025, Plaintiff filed a complaint against five named defendants. Since that time, Plaintiff seems to have been challenged in timely, and perhaps substantively, complying with his discovery obligations. As a result, the Court has sanctioned Plaintiff for discovery abuse on April 8, 2026 (Order filed May 7, 2026) and April 17, 2026 (Order filed May 15, 2026). The instant motion is the third motion to compel brought against Plaintiff for failure to provide timely discovery responses and more are on the horizon. Plaintiff should be reminded that “[i]t is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]” [Citation.] A self-executing discovery system is “one that operates without judicial involvement.” (2 Hogan & Weber, Cal. Civil Discovery [(2d ed. 2005) Sanctions,] § 15.4, pp. 15-7 to 15-8.)” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) Maybe it is not too late to change course.

On December 29, 2025, Defendant Nordstrom served on Plaintiff Special Interrogatories, Set One. Plaintiff’s responses were due no later than January 30, 2026. Plaintiff did not serve responses by that date. Nordstrom understandably filed this motion asking the Court to compel Plaintiff’s responses to Nordstrom’s Special Interrogatories, Set One, without objection, and to impose monetary sanctions against Plaintiff and his attorney in the amount of \$2,073.00.

Plaintiff’s opposition to the motion was due May 22, 2026. Plaintiff has not filed any opposition. “[T]he failure to file an opposition creates an inference that the motion ... is meritorious.” (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410; *Laguna Auto Body v. Farmers Is. Exchange* (1991) 231 Cal.App.3d 481, 489 [“appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel ..., leading the trial court ... to presume they had no meritorious arguments”].)

With admirable diligence and candor, Nordstrom has advised the Court that on May 13, 2026, Plaintiff finally served responses to Nordstrom’s Special Interrogatories, Set One. Those responses included objections, and Nordstrom asserts that most of the answers are vague, ambiguous, conclusory, and incomplete. Nordstrom asks the Court to compel Plaintiff to further respond to Nordstrom’s Special Interrogatories, Set One, without objection (pursuant to Code of Civ. Proc. § 2030.290(a)), and with substantive answers “within a specific number of days that this Court deems reasonable after Defendant Nordstrom serves its meet-and-confer letter on Plaintiff.” Nordstrom maintains its request for sanctions.

The trial Court is vested with substantial discretion when there was a failure to respond to discovery before the motion to compel was filed but responses are served thereafter. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) Here, Nordstrom’s request is reasonable and serves the best interest of judicial economy. Plaintiff failed to timely serve interrogatory responses. Plaintiff has thus “waived any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290(a).) By itself, the fact that Plaintiff has responded with

any objections at all clearly shows that the late responses have not mooted the issues raised by the motion. Nordstrom's other concerns with the late responses might also be well taken, but the Court will give the parties an opportunity to resolve that question informally first.

For these reasons:

- 1) Plaintiff's counsel shall meet and confer with Nordstrom's counsel either in person, by telephone, or by video conference not later than June 12, 2026, to attempt to informally resolve all remaining issues with the current state of Plaintiff's late responses;
- 2) Plaintiff shall serve further verified, code-compliant responses ***without objections*** to Nordstrom's Special Interrogatories, Set One, not later than June 26, 2026;
- 3) If any issues remain after service of Plaintiff's further responses, the parties shall file a *joint* statement no later than July 7, 2026, which shall identify the remaining items in dispute and the reasons why further responses should/should not be compelled.
- 4) The matter is CONTINUED to July 10, 2026, at 9:00 a.m. in Department 13 for further proceedings consistent with this order.

In addition, Nordstrom's request for monetary sanctions with respect to the instant motion is well taken. Plaintiff's failure to serve timely responses necessitated the filing of this motion; Plaintiff's late responses with, at minimum, inappropriate objections have not mooted the issues; Plaintiff has been completely silent as far as any opposition or formal filing as to this motion; and there is no evidence of substantial justification or other circumstances to excuse Plaintiff's delinquency or render the imposition of the sanction unjust. Therefore, Plaintiff and his counsel shall pay monetary sanctions in the amount of \$2,073.00 to Defendant Nordstrom within 30 days of the date of service of the final order. (Code Civ. Proc., § 20230.290.)

The Court will prepare the final order.

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Calendar Line 3

Case Name: *Ravi Vou v. County of Santa Clara*

Case No.: 25CV463523

Before the Court is Defendant County of Santa Clara's ("Defendant" or the "County") demurrer to the Second Amended Complaint ("SAC") filed by Plaintiff Ravi Vou ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

According to the allegations of the SAC, Plaintiff was hired by Defendant as a Hospital Services Assistant. (SAC, ¶ 14.) On or around October 9, 2021, Plaintiff was involved in a work-related accident where she fell and injured herself at St. Louise Regional Hospital ("the Hospital"), owned and operated by Defendant. (*Ibid.*) The injuries resulted in cervical disc disorder, strain or muscle, fascia and tendon of lower back, rotator cuff tear, and rupture of right shoulder. (*Ibid.*) Plaintiff was thereafter restricted from lifting or pulling more than 10 pounds and her restrictions were presented to the County.

On or around December 22, 2021, the County approved Plaintiff for modified duty for 12 weeks. (SAC, ¶ 15.) The modified duty required her to essentially perform the same functions as when she was healthy and she was able to perform these essential functions. (*Ibid.*) However, before the 12-week period ended, on or around February 9, 2022, the County terminated her modified duty and informed her it could not accommodate her further until she was cleared for full duty without restrictions. (*Id.*, ¶ 16.) The day before the modified duty was terminated, Plaintiff was involved in an incident where she was assigned to make sure a patient did not get out of bed and was instructed to call for help when the patient got out of bed. (*Ibid.*) Plaintiff called for help when the patient got out of bed, but nobody came to help her. (*Ibid.*) Plaintiff was hurt when the patient put his leg on her. (*Id.*, ¶ 17) Thereafter, the County terminated any further accommodation for Plaintiff. (*Id.* ¶ 17.) Plaintiff was told to stay home without pay. (*Id.* at ¶ 22.)

Plaintiff continued to have the same physical restrictions and communicated these to the County, but the County refused to engage in an interactive process or accommodate her restrictions. (SAC, ¶¶ 23-24.) The County did not allow Plaintiff to return to work despite having modified work available. (*Id.*, ¶ 24.) Instead, the County chose to place her on an involuntary leave of absence. (*Ibid.*)

On January 5, 2024, the County notified Plaintiff that it was unable to accommodate her work restrictions, that her two-year absence from the department was a hardship, and if she was unable to return to work, she may be eligible for disability retirement. (SAC, ¶ 26.) She was asked to complete and update her job application for the County so she could either find a new job or go into disability retirement. (*Ibid.*)

On January 16, 2024, Plaintiff completed and submitted the County job application and received no response. (SAC, ¶ 27.) Thereafter, Plaintiff's manager advised her to find a job outside of the County because the County had no jobs to accommodate her restrictions, (*Id.*, ¶ 28.)

On July 23, 2024, the County again notified Plaintiff that they could not accommodate her restrictions and requested that she provide information regarding her ability to return to